

OK
1-16-03

Memorandum

file
Dolomite
Jackson
Cody

DATE: January 15, 2003

TO: Matt Dimitroff
Compliance/Enforcement
FDEP, Northwest District
Northwest District Office, Pensacola

THROUGH: Henry Hernandez
FDEP, Northwest District
Panama City Branch Office

FROM: Vic Keisker, Environmental Specialist
FDEP, Northwest District
Panama City Branch Office

SUBJECT: Dolomite Inc. (Facility I.D. #FL0101192)

Matt,

I made a site inspection on 1/14/03 while acting on a request for information from Allan Karrer to Keith Butchikas. The request for information originated on December 16, 2002. The following information was gathered and observations made.

On 1/13/03 I contacted Mr. David Sloan of Dolomite Inc. by phone, reviewed the allegations contained in the complaint, and requested permission to enter the property at Dolomite to do a joint inspection that included SLERP, DEP Wastewater, and the Northwest Florida Water Management District (NWF WMD). Mr. Sloan granted permission to enter the site and the inspection was scheduled for 1/14/03 at 10:30 AM CST.

On 1/14/03 at 10:30 AM I, accompanied by Keith Butchikas (DEP Wastewater), met with Al Culpepper (NWF WMD) and David Thompson (Dolomite Representative).

Mr. Thomson stated that an earthen dam had been constructed at the outfall from a quarry pond to Rocky Creek, thus eliminating the outfall. He stated during a site inspection a few years ago, Steve Kelly of DEP had stated to him that this discharge point should be monitored. He interpreted this to mean that monitoring was required at that discharge point and began the monitoring. The construction of the earthen dam was done in an attempt to eliminate the assumed requirement of monitoring at that discharge point. Mr. Thompson stated that the pond connected to the eliminated discharge point were approximately 15 – 20 feet deep and were created during mining when a natural spring was encountered. He stated that prior to the construction of the earthen dam there was always a flow of water from the pond to Rocky Creek. He stated that after the earthen dam was constructed, the pool elevation of the pond increased by approximately 2 feet and then stabilized. The flow from the pond to Rocky Creek ceased, and

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the only observed exchange of water between the pond and Rocky Creek was from Rocky Creek into the pond during extremely high flood waters.

The inspection began with a site visit to the new earthen dam. The dam was observed to be approximately 30 feet long across the crown, 15 feet long across the toe, approximately 8 feet down from the crown to the toe on the landward side with an approximated 2:1 slope. The waterward face had visible signs of erosion which indicated a recent event whereas water topped the dam and entered the pond from Rocky Creek. No discharge from the pond was observed. The pond created from the impounded water was calculated to be approximately 11.479 acres (500,025 sq ft). Assuming that the minimum depth of the water was 15 feet, the pond was calculated to be 172.191 acre feet (7,500,640 cubic feet of water). This is significant in that the NWF WMD may assert jurisdiction over an impoundment of more than 50 acre feet of water. The perimeter of the pond is bordered by uplands around the entire pond except in two locations. The first of those locations is closed to D-002. The second location where wetlands adjoin the pond is where the earthen dam was constructed. At that point the wetland impact is approximately 10 – 15 feet long (along the shoreline) and approximately 20 feet wide from the waterward toe to the landward toe. The wetland impact is calculated to be approximately 200 – 300 square feet or a maximum of 0.0069 acres.

The inspection continued with an inspection of outfall D-002. There was no discharge at D-002 at the time of inspection and the pool elevation was approximately 8" below the point where discharge would begin. The stormwater pond upstream of D-002 is approximately 86,746 square feet with an average depth of approximately 4 feet for a total impoundment of approximately 7.966 acre feet. Approximately 57,252 cubic feet of water would have to be added to what was existing at the time of inspection for the pond to begin discharging. There is no monitoring required at D-002.

The inspection continued with an inspection of outfall D-001. There was a significant discharge at the time of inspection and it was reported that there is a discharge from this point virtually all of the time. There is required monitoring at this discharge point. The inspection was concluded after the inspection of this outfall.

On 1/15/2003 at approximately 7:15 AM CST Al Culpepper contacted me by phone. Al's supervisor, Lance Laird was not going to be in the office on 1/15 and Al did not know if Lance wanted to exercise jurisdiction over the dam. A decision will be made in the near future.

On 1/15/2003 a conference call was made including Allan Karrer, Keith Butchikas, and Vic Keisker. There was discussion about whether Dolomite had actually been under the impression they had to do monitoring where the dam had been constructed, and if they had actually been doing the monitoring they thought they had to do. It was decided that Allan Karrer would check the DEP records to see if they would indicate monitoring had been done, and Keith Butchikas would contact Dolomite to see if they could produce monitoring results.

Keith Butchikas contacted David Thompson at Dolomite and requested that documentation of monitoring be sent to the Panama City Branch Office of DEP. Mr. Thompson faxed 52 pages of

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results of testing from 11/10/1999 through 12/5/01. Their reports indicate that the flow was closed (dam constructed) prior to 1/2002. The testing data included pH, turbidity, and TSS measurements. The TSS and turbidity measurements were analyzed by the Water Spigot, Inc.

Photos were taken at the site by Vic Keisker and will be available upon request.

The decision of the DEP to do enforcement with regard to the minor wetland impacts created by the footprint of the dam will likely be contingent upon whether the NWF WMD asserts jurisdiction over the project.

If you have any questions, or if I can be of further assistance, please call me at SunCom 777-4375 #106.

Thanks,

Vic Keisker

Environmental Specialist

Memorandum

Florida Department of Environmental Protection

TO: File

THRU: Bill Evans

FROM: Allan Karrer 

DATE: January 25, 2000

SUBJECT: Dolomite FL0101192 - Jackson County; Site Inspection

1. I visited the facility on January 20, 2000 with Barbara Ruth and Steve Kelly. The visit was in response to a complaint and the subsequent discovery of an unpermitted surface water discharge into Rock Creek. We inspected the site with Frank Thompson, Plant Manager, and Leon Nobles the P.E. for the permit.
2. The site was visited for the purpose of inspecting the unpermitted discharge, to determine the details concerning the discharge and to evaluate the feasibility of various corrective actions.
3. A major portion of the facility consists of an "old" mining area consists of a series of spring fed water bodies or "lakes" that are left from the past mining activities of some twenty years ago. This area will be referred to as the "lakes" for convenience. The unpermitted outfall is located in a relatively remote area of the facility at the end of the second lake where it flows into Rock Creek. The discharge is not readily seen and this accounts for the fact that previous inspectors had not discovered the discharge. The discharge consists of primarily spring fed water from the lakes and storm water from part of the plant processing area as described below.
4. The runoff from the southeastern half of the plant processing area consists only of storm water, some of the storm water contacts stored piles of dolomite. The stormwater flows overland into two sediment basins #4 and #5 and stormwater from basin #4 flows into basin #5. Basin #5 (photo 1) discharges via a standpipe (photo 2) into the first of the lakes (photos 3 & 4) via a standpipe at the southwest end of the basin.
5. The unpermitted discharge (photos 5, 6 & 10) appears to be a continuous flow of clear (photos 7 & 11), spring water from the lakes. It discharges into Rock Creek (photos 8 & 9) which empties into the Chipola River (photos 17 & 18). The volume of flow without storm water augmentation appears to be somewhat greater than the flow from the permitted mining operation discharge (photo 16).
6. The permit application for this facility indicated that the water from the lakes flowed into the mining quarry and exited via the permitted outfall. The inspection indicates that the spring water from the lakes has discharged at the unpermitted discharge point for a considerable time. The banks around the lakes are far too high for any overland flow into the mining quarry to occur. Therefore the previous flow data for the mining operation did not include the flow from the lakes and the stormwater discharge from the plant administrative and processing area.
7. The other photos are components of the facilities permitted wastewater collection and treatment system and are described in the permit administrative record.



1. Basin #5 looking northeast from the discharge end.



2. Basin #5 discharge standpipe - southwest end of basin.



3. Basin #5 discharge pipe to the "lakes".



4. The first "lake" looking southwest from Basin #5 discharge.



5. Unpermitted discharge from second "lake" looking northwest toward the "lake".



6. Unpermitted discharge from second "lake" looking southwest toward Rock Creek.



7. Clarity of unpermitted discharge (at position in photo #5).



8. Rock Creek where discharge enters - looking downstream toward the southwest.



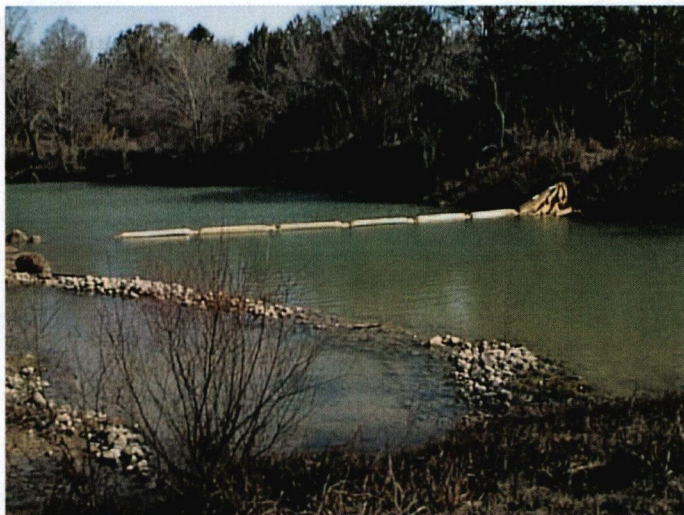
9. Rock Creek where discharge enters - looking upstream toward northeast.



10. Discharge - looking from entry point at Rock Creek toward the northwest.



11. Discharge - point of exit from "lake".



12. Mine operation - discharge barrier and riprap.



13. Mine operation - sediment treatment system - riprap



14. Mine operation - sediment treatment system - riprap



15. Mine operation – silt screen down.



16. Discharge (D-001) to Chipola River (pipe - lower left corner)



17. Rock Creek discharge into Chipola River



18. Rock Creek looking upstream from Chipola River



19. Sediment Basin #2 for rock crushing operation



20. Sediment Basin #2 discharge pipe



21. Reclaimed material from sediment basins;
note overland flow area in background.